

25STCV19510 25STCV19510

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-15

Motion: DEFENDANT GENERAL MOTORS LLC'S MOTION TO TRANSFER VENUE

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Case Number: 25STCV19510 Hearing Date: September 15, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

GABRIEL C. ORDAZ,

Plaintiff,

vs.

GENERAL MOTORS LLC; and DOES 1
through 10, inclusive,

Defendants.

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CASE NO: 25STCV19510

[TENTATIVE] ORDER RE: DEFENDANT
GENERAL MOTORS LLC'S MOTION TO TRANSFER VENUE

Dept. 731

September 15, 2026

8:30 a.m.

Matter No. 17

Moving Party: Defendant, General Motors LLC

Opposing Party: None

Notice: OK

Background Facts

Plaintiff Gabriel C. Ordaz sues

Defendants General Motors LLC and Does 1 through 10 pursuant to a June 30, 2025, Complaint, alleging Song-Beverly Consumer Warranty Act ("SBA") claims arising from allegations related to Plaintiff's February 26, 2021, purchase and/or lease of a 2021 Chevrolet Silverado that was manufactured and/or

distributed by General Motors.

Now before the Court is General

Motors' unopposed motion to change venue for this action, which was properly served on Plaintiff's counsel via email at various individual counsel email addresses and to the service email address of SLPCaseDocs+1GCPWBEK2MZ241434Ordaz@slpattorney.com.

Motion to Change

Venue

a. Legal

Standard

In California, parties can bring a motion to change the venue for the action to a different county. (See Code Civ. Proc., § 397, subds. (b)-(e), 397.5; *Passeano v. Superior Court* (1988) 204 Cal.App.3d 17, 20-21.) In civil actions generally, a party can file a motion to change venue on the grounds that (1) an impartial trial cannot be had in the county of suit, (2) the convenience of witnesses and the ends of justice would be promoted by the change, or (3) there is no qualified judge in the county of suit. (Code Civ. Proc., § 397, subds. (b)-(d).)

To prevail on the grounds of no impartial trial, the movant must show that it is subject to actual, widespread prejudice in the county. (*Ohio Cas. Ins. v. Superior Court* (1994) 30 Cal.App.4th 444, 452; *People v. Ocean Shore R.R.* (1938) 24 Cal.App.2d 420, 427-428.) Relevant factors are pervasiveness of prejudice, length and intensity of prejudice, publicity of the action, and inability to impanel a jury. (*Ocean Shore*, supra, at pp. 426-428 [prejudice factors]; J.I. Case Threshing Co. v. Copren Bros. (1917) 35 Cal.App. 70, 79 [jury impaneling].)

To prevail on the ground of convenience of witnesses and ends of justice, the movant must (1) provide the names of the witnesses, (2) describe the nature of their testimony, (3) explain how the county of suit would be inconvenient for them, and (4) show how the ends of justice would be promoted by a change in venue. (*Peiser v. Mettler* (1958) 50 Cal.2d 594, 607; cf. *Rycz v. Superior Court* (2022) 81 Cal.App.5th 824, 836 & fn. 8 [no express requirement for this information in statute].)

The ground of no qualified judge is essentially obsolete insofar as the chief justice of a court will simply assign an outside judge to hear the matter instead of transferring the entire case. (Code Civ. Proc., § 170.8; *People v. Spring Valley Co.* (1952) 109 Cal.App.2d 656, 672.)

Discussion

After review, the Court finds sufficient grounds for relief.

General Motors presents unopposed evidence that Plaintiff is a resident of San Bernardino County, that the subject vehicle was purchased from a San Bernardino located dealership, and that the repairs to the subject vehicle also took place in San Bernardino County. (Motion, p. 2, citing Motion, Allison Decl., ¶¶ 2-6, Exs. A [sales contract], B [Plaintiff's address in disclosures], C [repair work documents], [repair work location in disclosures]; see Complaint, ¶ 1 [failing to specify Plaintiff's county of residence].) Under these circumstances, evidence and witnesses are almost certainly located in San Bernardino County, a position not disputed by Plaintiff for lack of an opposition.

c. Conclusion

Defendant General Motors LLC's motion to change venue is accordingly GRANTED.

Defendant General Motors LLC is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 15, 2026 _____

MARK C. KIM

Judge of the
Superior Court